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ELECTRONICALLY
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Superior Court of California,
County of San Francisco
07/08/2024
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Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN AND FOR THE CITY AND COUNTY OF SAN FRANCISCO

UNLIMITED JURISDICTION

MICHAEL HAGELE, Plaintiff, v. MATTHEW KAHN, NEIL RIDEOUT, and DOES 1 through 10, Defendants.	Case No.: CGC-24-614474 DECLARATION OF JASON SKAGGS IN SUPPORT OF DEFENDANTS' ANTI-SLAPP MOTION Date: August 19, 2024 Time: 9:30 a.m. Dept: 302

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I, Jason Skaggs hereby declare as follows:

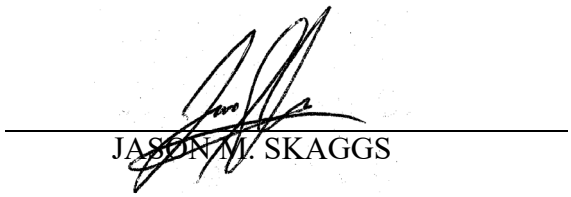
1. I am an individual over the age of 18 years and am an attorney licenced to practice in California. I represent the Defendants in the above-captioned action. I make this declaration in support of Defendants' anti-SLAPP motion. I have personal knowledge of all of the facts set forth below, and if called to testify under oath, I could and would competently testify to the facts set forth herein.

2. Attached hereto as Exhibit 1 is a true and correct copy of an article entitled "Man caught with fake cash, cocaine, swallowed evidence", by Emily Mieure, dated Jan. 25, 2018, published in the Jackson Hole News & Guide and retrieved by me from the website https://www.jhnewsandguide.com/news/cops_courts/man-caught-with-fake-cash-cocaine-swallowedevidence/article_fd0aee33-0f1e-5c9c-a361-3f3b319dba87.html on or about June 26, 2024.

3. Attached hereto as Exhibit 2 is a true and correct copy of an article entitled "Man accused of swallowing cocaine pleads guilty to possession", by Ashley Franscell Detrick, dated March 26, 2018, published in the Wyoming News Exchange and retrieved by me from the website https://www.gillettenewsrecord.com/news/wyoming/article_ff9f6172-33d1-529f-a2c7-d15f72b5c8f9.html on or about June 26, 2024.

4. Attached hereto as Exhibit 3 is a true and correct copy of an article entitled "Hagele pleads guilty to cocaine charge", by Emily Mieure, dated March 23, 2018, published in the Jackson Hole News & Guide, and retrieved by me from the website https://www.jhnewsandguide.com/this_just_in/hagele-pleads-guilty-to-cocaine-charge/article_10b06e00-4e59-5bf7-9511-126767ef999e.html on or about June 26, 2024.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed at Los Altos, CA on July 8, 2024.



JASON M. SKAGGS

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Exhibit 1

https://www.jhnewsandguide.com/news/cops_courts/man-caught-with-fake-cash-cocaine-swallowed-evidence/article_fd0aee33-0f1e-5c9c-a361-3f3b319dba87.html

Man caught with fake cash, cocaine, swallowed evidence

By Emily Mieure Jackson hole daily
Jan 25, 2018

Counterfeit cash was seized Wednesday from Michael Hagele, 48, after he passed a fake bill at Teton Village.
COURTESY PHOTO

Update, May 30, 2024: The felony forgery charge in this case was dismissed and Hagele pleaded guilty in March 2018 to one count of misdemeanor possession of a controlled substance. That misdemeanor charge ultimately was dismissed after successful completion of probation.

Original article, January 25, 2018: A California man who passed fake money Wednesday at Teton Village was caught with a stash of counterfeit bills stuffed down his ski boot, police said.

“He had a pretty good stack of them,” Teton County Sheriff’s Sgt. Todd Stanyon said.

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When deputies contacted Michael Hagele, 48, he bent over to get the fake money out to hand over to police and a “chunk of what appeared to be cocaine” fell to the ground.

But Hagele swallowed the drug before deputies could seize it.

“When the deputy said, ‘what was that?’ Hagele answered, ‘nothing,’ ” Stanyon said.

Hagele, who’s a practicing attorney in California, was caught after Jackson Hole Mountain Resort employees found his fake $20 bill after he bought a ski pass around 11 a.m. Wednesday.

Hagele got about an hour of skiing in before JHMR deactivated his ski pass.

Once deputies started to arrest him, Hagele said it was cocaine he swallowed.

He was rushed to St. John’s Medical Center for evaluation.

“They kept him overnight,” Stanyon said.

Stanyon said Hagele passed the fake $20 under some real cash at the lift pass window so it was easy for employees to miss.

“They handle a lot of money out there. This is a rare occurrence,” Stanyon said. “You get complacent and it was intermingled with genuine currency.”

His counterfeit money wasn’t impressive, police said. It was labeled: “for motion picture purposes.”

Hagele was booked Thursday morning at Teton County Jail.

He was charged with two misdemeanor counts of possession and forgery, a felony.

An interference charge is being considered since Hagele swallowed evidence, police said.

According to the State Bar of California Hagele is a longtime intellectual property lawyer from Mill Valley, California.

Contact Johanna Love at 732-7071, jlove@jhnewsandguide.com or @JHNGeditor on Twitter.

Johanna Love

Editor in Chief Johanna Love has covered the Jackson Hole community as part of the News&Guide staff since 1998. She took the helm of the newsroom in 2017. She fields story tips and kudos as well as criticism and questions.

Emily Mieure

Exhibit 2

Man accused of swallowing cocaine pleads guilty to possession

Wyoming News Exchange
Mar 26, 2018

JACKSON (WNE) — A man accused of using fake money to buy a ski pass at Jackson Hole Mountain Resort and then swallowing cocaine in front of a sheriff's deputy pleaded guilty to misdemeanor possession Thursday in exchange for the dismissal of a felony forgery charge.

Michael Hagele, 48, appeared in person Thursday morning in Teton County Circuit Court with his attorney John Robinson.

The California resident was ordered to complete 20 hours of community service, successfully complete outpatient treatment for addiction and serve one year of probation.

If he does that without violating probation terms, the charge will be deferred.

Hagele was in town the we

Hagele was caught after an employee at Jackson Hole Mountain Resort found a fake $20 bill that police said the defendant hid in a stack of real bills to purchase a two-day lift ticket.

When it was discovered, police were called, employees shut down his pass and deputies tracked him down on the ski hill.

The fake bill was obvious, police noted, because it said “motion picture purposes” on it.

When police located Hagele at Jackson Hole Mountain Resort they discovered more fake cash, according to the probable cause affidavit.

“I don’t know how or where I got that,” Hagele reportedly told police at the time.

That’s when police said a white chunky substance fell out of another fake bill, and Hagele said “oops” and tossed it into his mouth.

“After inspecting it briefly I asked if it was crack cocaine and Hagele responded, ‘It might be something like that,’ ” the officer wrote. “I asked Hagele again to identify the substance and he said, ‘It’s a little bit of cocaine.’ ”

Ashley Franscell Detrick

Learn more about your privacy options

Exhibit 3

https://www.jhnewsandguide.com/this_just_in/hagele-pleads-guilty-to-cocaine-charge/article_10b06e00-4e59-5bf7-9511-126767ef999e.html

Hagele pleads guilty to cocaine charge

By Emily Mieure Jackson Hole Daily
Mar 23, 2018

Update, May 30, 2024: After successful completion of probation, this misdemeanor charge was dismissed.

Original article, March 23, 2018: A man accused of using fake money to buy a ski pass at Jackson Hole Mountain Resort and then swallowing cocaine in front of a sheriff's deputy pleaded guilty to misdemeanor possession Thursday in exchange for the dismissal of a felony forgery charge.

Michael Hagele, 48, appeared in person Thursday morning in Teton County Circuit Court with his attorney John Robinson.

"The impact of this case has had repercussions on Mr. Hagele's life, professionally and personally," Robinson told the court, "mainly because of media coverage — and the media is here today — so we're not going to say a whole lot except that he's very remorseful about what happened."

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The California resident was ordered to complete 20 hours of community service, successfully complete outpatient treatment for addiction and serve one year of probation.

If he does that without violating probation terms, the charge will be deferred.

Hagele was in town the week of Jan. 20 with some friends for a ski trip. They were staying at a rental house in Teton Village, according to his friends.

When Judge James Radda asked the defendant what happened Jan. 24 that resulted in his arrest Hagele said, “I used cocaine.”

Hagele was caught after an employee at Jackson Hole Mountain Resort found a fake $20 bill that police said the defendant hid in a stack of real bills to purchase a two-day lift ticket.

When it was discovered, police were called, employees shut down his pass and deputies tracked him down on the ski hill.

The fake bill was obvious, police noted, because it said “motion picture purposes” on it.

When police located Hagele at Jackson Hole Mountain Resort they discovered more fake cash, according to the probable cause affidavit.

“I don’t know how or where I got that,” Hagele reportedly told police at the time.

That’s when police said a white chunky substance fell out of another fake bill, and Hagele said “oops” and tossed it into his mouth.

“After inspecting it briefly I asked if it was crack cocaine and Hagele responded, ‘It might be something like that,’ ” the officer wrote. “I asked Hagele again to identify the substance and he said, ‘It’s a little bit of cocaine.’ ”

Officers also located a THC pen in Hagele's pocket with marijuana oil in it, they stated.

Hagele was arrested and taken to St. John's Medical Center for detox and an evaluation. While there he told officers he bought the cocaine from a "street dealer in San Francisco."

Hagele told officers the fake money was being used to play cards and that he hadn't meant to use it fraudulently.

According to documents, Hagele has a criminal history dating back to 2012 that includes DUI, possession of cocaine, possession of marijuana, open container and trespass. Some of those charges resulted in convictions in Nevada, Utah and California, documents state.

The California attorney declined to comment on the record for this story.

Contact Emily Mieure at 732-7066, courts@jhnewsandguide.com or @JHNGcourts.

Emily Mieure